

The Demurrer on this ground is **overruled**.

Uncertainty

Defendants also demurrer to Plaintiffs' second, third, fourth, fifth, sixth, and seventh causes of action on the grounds that they are fatally uncertain. However, the memorandum of points and authorities argues only that the second cause of action for breach of written contract for the sale of real property is uncertain and ambiguous. The bulk of this section of the brief relates to the discovery rule, which the Court discusses further, above.

Defendants argue that as they are not a party to the Residential Purchase Agreement, "it is unclear as to what breach of a written contract, if any, Plaintiffs are alleging." (Demurrer at 11:23-25.)

Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

Here, however, there does seem to be some lack of clarity with respect to the agreements between the parties. The FAC alleges that "Vanguard acted as the dual agent for both seller and buyer in connection with the sale of the Property to Plaintiffs herein." (FAC at ¶ 3.) The FAC further alleges that "the Realtor Defendants provided Plaintiffs with a variety of written real estate disclosures and made certain oral disclosures with regard to the Property, many of which were misleading, incomplete or untrue." (*Id.* at ¶ 11.) It is unclear whether Plaintiffs' breach of contract claim against Defendants is based on the contract they have with them as an agent or under a third-party beneficiary theory with respect to the Residential Purchase Agreement.

The Opposition fails to clarify this issue. Plaintiffs refer to paragraph 11 of the FAC and argue that the allegations of the FAC are sufficiently clear to apprise the Defendants of the issues to be met. The Court cannot agree.

The Demurrer to Plaintiffs second cause of action for breach of written contract is **sustained**, with leave to amend.

Declaratory Relief

Finally, Defendants demur to Plaintiffs' declaratory relief cause of action on the grounds that "there is no actual controversy between Plaintiffs and Defendants, since Plaintiffs cannot sustain their Complaint against these Defendants." (Dem. at 12:14-15.) With the exception of Plaintiffs' uncertain breach of contract cause of action, that is not the case (as discussed above). The demurrer to this cause of action is **overruled**.

6. 9:00 AM CASE NUMBER: C25-02275
CASE NAME: SHERYL ILEDAN VS. DEREK THIBODEAU
HEARING ON SUMMARY MOTION SUMMARY ADJUDICATION ON THE CROSS-COMPLAINT
FILED BY: THIBODEAU, DEREK
TENTATIVE RULING:

Parties emailed Department 32 to vacate the hearing. Hearing is vacated.